

SENATE No. 1248

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act codifying organizational standing to protect and promote civil rights.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/20/2025</i>

SENATE No. 1248

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 1248) of Rebecca L. Rausch for legislation to codify public interest organizational standing to protect and promote civil rights. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act codifying organizational standing to protect and promote civil rights.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 151B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 3, after the word “corporations”, the
3 following words:- , public interest organizations.

4 SECTION 2. Said section 1 of said chapter 151B, as so appearing, is hereby further
5 amended by inserting after paragraph 23 the following paragraph:-

6 24. The term “public interest organization” shall mean any non-profit organization which
7 is organized or operating in whole or in part for the purpose of combating discrimination or bias,
8 of safeguarding civil rights or of promoting interests or rights under this chapter.

9 SECTION 3. Section 5 of said chapter 151B, as so appearing, is hereby amended by
10 inserting, after the first sentence, the following sentence:- Without limiting or excluding any
11 other basis for a complaint, a public interest organization may be aggrieved if a purpose or
12 activities to achieve that purpose were perceptively impaired by an alleged unlawful practice or

13 violation; or if an alleged unlawful practice or violation was directed at the public interest
14 organization or its agents or employees; or where the public interest organization has a sufficient
15 nexus to the interests of the person or persons whose interests are harmed by an alleged unlawful
16 practice or violation.

17 SECTION 4. Section 9 of chapter 151B, as so appearing, is hereby amended in the
18 second paragraph by inserting, after the first sentence, the following sentence:- Without limiting
19 or excluding any other basis for a civil action, a public interest organization may be aggrieved if
20 a purpose or activities to achieve that purpose were perceptively impaired by an alleged unlawful
21 practice; or if an alleged unlawful practice was directed at the public interest organization or its
22 agents or employees; or where the public interest organization has a sufficient nexus to the
23 interests of the person or persons whose interests are harmed by an alleged unlawful practice.